



United States
Attorney's Office
District of Massachusetts



United States Files Complaint Against Several National Health Insurance Companies and Brokers Alleging Unlawful Kickbacks and Discrimination Against Disabled Americans



Thursday, May 1, 2025

For Immediate Release

U.S. Attorney's Office, District of
Massachusetts

Government alleges that three of the nation's largest health insurance companies paid hundreds of millions of dollars in illegal kickbacks in exchange for Medicare Advantage enrollments

BOSTON – The United States has filed a [complaint](#) against three of the nation's largest health insurance companies: Aetna, Inc. and affiliates; Elevance Health, Inc. (formerly known as Anthem); and Humana Inc., and three large insurance broker organizations: eHealth, Inc. and an affiliate; GoHealth, Inc.; and SelectQuote, Inc. The United States alleges that from at least 2016 through at least 2021, the defendant insurers paid hundreds of millions of dollars in illegal kickbacks to the defendant brokers in exchange for enrollments into the insurers' Medicare Advantage plans.

Under the Medicare Advantage (MA) Program, also known as Medicare Part C, Medicare beneficiaries may choose to enroll in health care plans (MA plans) offered by private insurance companies, such as defendants Aetna, Anthem and Humana. Many Medicare beneficiaries rely on insurance brokers to help them choose an MA plan that best meets their individual needs. Rather than acting as unbiased stewards, the defendant brokers allegedly directed Medicare beneficiaries to plans offered by insurers that paid brokers the most in kickbacks, regardless of the suitability for the beneficiary. According to the complaint, the broker organizations incentivized their employees and agents to sell plans based on the

insurers' kickbacks, set up teams of insurance agents who could sell only those plans, and at times refused to sell MA plans of insurers who did not pay sufficient kickbacks.

The United States further alleges that Aetna and Humana each conspired with the broker defendants to discriminate against Medicare beneficiaries with disabilities whom they perceived to be less profitable. Aetna and Humana did so by allegedly threatening to withhold kickbacks to pressure brokers to enroll fewer disabled Medicare beneficiaries in their plans. The United States alleges that, in response to these financial incentives from Aetna and Humana, the defendant brokers, or their agents, rejected referrals of disabled beneficiaries and strategically directed disabled beneficiaries away from Aetna and Humana plans.

“It is concerning, to say the least, that Medicare beneficiaries were allegedly steered towards plans that were not necessarily in their best interest – but rather in the best interest of the health insurance companies. The alleged efforts to drive beneficiaries away specifically because their disabilities might make them less profitable to health insurance companies are even more unconscionable. Profit and greed over beneficiary interest is something we will continue to investigate and prosecute aggressively,” said United States Attorney Leah B. Foley. “This office will continue to take decisive action to protect the rights of Medicare beneficiaries and vulnerable Americans.”

“Health care companies that attempt to profit from kickbacks will be held accountable,” said Deputy Assistant Attorney General Michael Granston of the Justice Department’s Civil Division. “We are committed to rooting out illegal practices by Medicare Advantage insurers and insurance brokers that undermine the interests of federal health care programs and the patients they serve.”

The lawsuit was originally filed under the qui tam or whistleblower provisions of the False Claims Act (FCA). Under the FCA, private parties can file an action on behalf of the United States and receive a portion of the recovery. The FCA permits the United States to intervene in and take over the action, as it has done here. If a defendant is found liable for violating the FCA, the United States may recover three times the amount of its losses plus applicable penalties.

U.S. Attorney Foley and AAG Granston made the announcement today. Valuable assistance was provided by the Department of Health and Human Services, Office of the Inspector General and the Federal Bureau of Investigation. Assistant U.S. Attorneys Charles B. Weinograd and Julien M. Mundele of the Affirmative Civil Enforcement Unit are handling the matter along with Trial Attorneys David G. Miller, Anna H. Jugo, Diana E. Curtis and Sara B. Hanson of the Justice Department’s Civil Division.

The claims asserted in the complaint are allegations only. There has been no determination of liability.

Attachment

[USA v. eHealth et al - Complaint](#) [PDF, 2 MB]

Topic

FALSE CLAIMS ACT

Component

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